

STATE OF NEW YORK

9265--A

IN SENATE

February 19, 2026

Introduced by Sen. FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Investigations and Government Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to repeal certain provisions of the general business law, the labor law, the civil service law, the domestic relations law, the education law, the executive law, in relation to removing outdated provisions of law; and to amend the education law, the general business law and the public lands law, in relation to removing outdated terminology and provisions of law and making technical corrections thereto

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 163 of the general business law is REPEALED.
2 § 2. Sections 203-a and 203-b of the labor law are REPEALED.
3 § 3. The closing paragraph of subdivision 1 of section 105 of the
4 civil service law is REPEALED.
5 § 4. Section 13-aa of the domestic relations law is REPEALED.
6 § 5. Subdivision 1 of section 306 of the education law, as amended by
7 chapter 298 of the laws of 1957, is amended to read as follows:
8 1. Whenever it shall be proved to [~~his~~] their satisfaction that any
9 trustee, member of a board of education, clerk, collector, treasurer,
10 district superintendent, superintendent of schools or other school offi-
11 cer [~~is a member of an organization listed as subversive by the board of~~
12 ~~regents pursuant to the provisions of section three thousand twenty-two~~
13 ~~of this chapter, or~~] has been guilty of any wilful violation or neglect
14 of duty under this chapter, or any other act pertaining to common
15 schools or other educational institution participating in state funds,
16 or wilfully disobeying any decision, order, rule or regulation of the
17 regents or of the commissioner of education, said commissioner, after a
18 hearing at which the school officer shall have the right of represen-
19 tation by counsel, may, by an order under [~~his~~] their hand and seal,
20 which order shall be recorded in [~~his~~] their office, remove such school
21 officer from [~~his~~] their office.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 § 6. Section 704 of the education law is REPEALED.

2 § 7. Section 4109 of the education law is REPEALED.

3 § 8. Section 4111 of the education law is REPEALED.

4 § 9. Section 8 of the executive law is REPEALED.

5 § 10. Subdivision 1 of section 184 of the general business law, as
6 amended by chapter 834 of the laws of 1965, is amended to read as
7 follows:

8 1. No employment agency, directly or indirectly, shall accept applica-
9 tions from persons who reside in a state outside New York, procure or
10 offer to procure employment of persons as domestic or household employ-
11 ees who are residing in states outside of this state previous to their
12 application for employment, except as provided in this section and in
13 the applicable provisions of other sections of this article. ~~[As used in
14 this section, the term "state" applies to the forty-eight states on this
15 continent, and the District of Columbia, but does not include the state
16 of Alaska.]~~

17 § 11. The opening paragraph of paragraph (a) of subdivision 7 of
18 section 75 of the public lands law, as amended by chapter 703 of the
19 laws of 1994, is amended to read as follows:

20 The commissioner of general services may grant in perpetuity or other-
21 wise, to the owners of the land adjacent to the land underwater speci-
22 fied in this section, to promote the commerce of this state or for the
23 purpose of beneficial enjoyment thereof by such owners, or for agricul-
24 tural purposes, or for public park, beach, street, highway, parkway,
25 playground, recreation or conservation purposes, so much of said land
26 underwater as the commissioner deems necessary for that purpose. No such
27 grant shall be made to any person other than the proprietor of the adja-
28 cent land. Any such grant made to any other person shall be void, except
29 that, subject to the other provisions of this section, the commissioner
30 of general services may transfer jurisdiction over state-owned lands
31 underwater to a state agency for the purpose of protecting environ-
32 mentally sensitive lands underwater even if the state agency is not the
33 proprietor of the adjacent upland. The commissioner may also lease such
34 land underwater to such owner of the adjacent upland or, with the
35 consent of such owner of the adjacent upland, to others, for terms up to
36 forty years. No such grant or lease shall be made of any lands belonging
37 to the city of New York~~[, or so as to interfere with the rights of that
38 city or of the Hudson River Railroad Company, or of its successor the
39 New York Central and Hudson River Railroad Company]~~. In making any
40 grant, lease, permit or other conveyance, the commissioner of general
41 services shall, upon administrative findings, and to the extent practi-
42 cable, reserve such interests or attach such conditions to preserve the
43 public interest in use of state-owned lands underwater and waterways for
44 navigation, commerce, fishing, bathing, recreation, environmental
45 protection and access to the navigable waters of the state, with due
46 regard for the need of affected owners of private property to safeguard
47 their property. The commissioner shall by official rules establish
48 criteria and guidelines for determinations with respect to the leasing
49 or selling of such lands underwater.

50 § 12. This act shall take effect immediately.